

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fendley	Team: Squad #05	CCRB Case #: 201501444	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 02/27/2015 12:45 AM	Location of Incident: Clinton Street and East Broadway	18 Mo. SOL 8/27/2016	Precinct: 07
Date/Time CV Reported Fri, 02/27/2015 4:56 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/27/2015 4:56 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Vahagn Krmoyan	21142	949882	007 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Luis Perez	21352	951043	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vahagn Krmoyan	Discourtesy: PO Vahagn Krmoyan spoke rudely to § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On February 27, 2015, § 87(2)(b) filed this complaint via telephone with the CCRB.

On February 27, 2015, at approximately 12:45 a.m., § 87(2)(b) was driving a garbage truck in which he and § 87(2)(b) were occupants, in the vicinity of Clinton Street and Broadway in Manhattan, when they were stopped by PO Vahagn Krmoyan and PO Luis Perez, both of the 7th Precinct. § 87(2)(b) alleged that during the interaction, PO Krmoyan used the word “fuck” towards him multiple times (**Allegation A**). § 87(2)(b) was issued two summonses for traffic violations, § 87(2)(b) § 87(2)(b)

Mediation, Civil Proceedings and Criminal Histories

§ 87(2)(b) declined to mediate this complaint § 87(2)(b). Because this closing report was submitted prior to the 90-day filing expiration deadline for a notice of claim, results for this request were still pending. The results will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

PO Krmoyan has been a member of the service for three years and there are no substantiated allegations against him § 87(2)(g). This is the first complaint filed by § 87(2)(b) (encl. 1 B).

Potential Issues

§ 87(2)(b) the witness to the interaction, did not cooperate with the investigation. On March 3, 2015, a call was placed to § 87(2)(b). He scheduled an appointment for March 9, 2015, but refused to provide his address. § 87(2)(b) missed his scheduled appointment on March 9, 2015, without prior notification. On March 10, 2015, a search of the Lexis Nexis database provided over thirty possible results for a § 87(2)(b) in the New York City area. Between the dates of March 11, 2015, and March 20, 2015, four more calls were placed to § 87(2)(b). The first two calls did not result in voicemail message being left because his voicemail box was full. The last two calls to § 87(2)(b) did not go through because his telephone number was no longer in service. Despite acknowledging that he was a witness to an ongoing CCRB investigation, § 87(2)(b) has not contacted the CCRB to pursue the complaint.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g).

Allegation A – Discourtesy: PO Vahagn Krmoyan spoke rudely to § 87(2)(b)

§ 87(2)(b) acknowledged making a three point turn through the entire street and driving without wearing his seatbelt. He said that upon PO Krmoyan’s approach of the truck, he asked the officer why he had been stopped. PO Krmoyan immediately began yelling about a damaged tire at the back of the garbage truck. § 87(2)(b) told PO Krmoyan that he was aware of the problem, but said that there was nothing he could do about it. PO Krmoyan said there was plenty he could do about it, such as pulling over the “fucking” truck and calling a “fucking” tow truck. § 87(2)(b) explained to PO Krmoyan that the situation was not that easy, but PO Krmoyan told him it was that “fucking” easy. § 87(2)(b) told PO Krmoyan to lower his tone of

voice and stop cursing. PO Krmoyan then went back to his police vehicle and § 87(2)(b) was issued four summonses for traffic violations (encl. 3 A-D). Multiple attempts were made to contact § 87(2)(b) the other man in § 87(2)(b)'s garbage truck at the time of the incident, but he did not cooperate with the investigation.

PO Krmoyan said that he did tell § 87(2)(b) that he should pull his truck over and call a tow truck. When § 87(2)(b) told him it was not that easy, he told § 87(2)(b) that it was that easy. However, PO Krmoyan denied using any profanity throughout the incident and said that he does not curse at all. He said that § 87(2)(b) was calm throughout the entire interaction until he was handed his summonses, at which point he yelled at PO Krmoyan (encl. 4 F-G). Both PO Krmoyan and PO Perez said that PO Perez was on the passenger side of the truck for the entire incident. PO Perez did not hear any of the interaction between PO Krmoyan and § 87(2)(b) because the garbage truck was so loud. However, he did not hear PO Krmoyan use any profanity (encl. 4 L-M).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date